

Amendment No. 1 to HB1528

Terry
Signature of Sponsor

AMEND Senate Bill No. 1743

House Bill No. 1528*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 20-5-106, is amended by deleting subsection (c) and substituting:

(c)

(1) Notwithstanding another law to the contrary, the right to institute and the right to collect any proceeds from a wrongful death action granted by this section to a surviving spouse is waived if the children or next of kin establish the surviving spouse has abandoned the deceased spouse as described in § 36-4-101(a)(13) or otherwise willfully withdrawn for a period of three (3) years.

(2) If the period of three (3) years has passed since the time of abandonment or willful withdrawal, then there is created a rebuttable presumption that the surviving spouse abandoned the deceased spouse for purposes of this section.

(3) In an action under this section, the child or next of kin shall serve the surviving spouse with process as provided in the rules of civil procedure or by substituted, constructive, or other service as may otherwise be provided by law.

SECTION 2. Tennessee Code Annotated, Section 20-5-107(e), is amended by deleting "two (2)" and substituting "three (3)" wherever it appears.

SECTION 3. Tennessee Code Annotated, Section 20-5-107(e)(3), is amended by deleting the subdivision and substituting:

(3) In an action under this section, the child or next of kin shall serve the surviving spouse with process as provided in the rules of civil procedure or by substituted, constructive, or other service as may otherwise be provided by law.

SECTION 4. Tennessee Code Annotated, Section 20-5-110(c), is amended by deleting "two (2)" and substituting "three (3)" wherever it appears.

SECTION 5. Tennessee Code Annotated, Section 20-5-110(c)(3), is amended by deleting the subdivision and substituting:

(3) In an action under this section, the child or next of kin shall serve the surviving spouse with process as provided in the rules of civil procedure or by substituted, constructive, or other service as may otherwise be provided by law.

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it.